

trial court, based on that privilege, properly granted a directed verdict for Best Alliance on the Markowitzes' slander of title claim"); cf. *Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 293 ("Given that slander of title is a tort claim, it is not surprising that a slander of title claim has been held to be subject to a litigation privilege defense. [Citations.]")

When a complaint reveals a privilege, the plaintiff must plead facts establishing malice. "(A)ctual facts must be alleged, unless they are apparent from the statement itself." (*Tschirky v. Sup. Ct.* (1981) 124 Cal.App.3d 534, 538-539.) The "mailing, publication, and delivery of notices" required as part of the nonjudicial foreclosure process are privileged. (Civ. Code § 2924, subd. (d)(1).) Therefore, a plaintiff must also allege that the recording was done with malice, "motivated by hatred or ill will" or without reasonable grounds for belief in the truth of the publication..." (See *Kachlon, supra*, 168 Cal.App.4th at 336.) Plaintiffs fail to meet this pleading requirement.

Although Quality argues that it "was named as a Doe Defendant solely for actions conducted in its capacity as Trustee under the Deed of Trust" (Demurrer at 4:6-7), precisely because Quality was added as a Doe Defendant, there are no separate specific substantive allegations regarding its conduct beyond boilerplate. As it stands, the Court concludes that Plaintiffs' cause of action is not sufficiently plead against Quality because there are no individual specific substantive allegations regarding Quality's conduct that would establish malice on its part. As a consequence, the MJOP is **GRANTED**.

5. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO ALEX SALES SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

Claimants Alex Sales Sales, Hirene Sales and Frankli Estuardo Sales Sales, by and through their duly appointed guardian ad litem herein, Norberto Emiliano Sales Sales ("Petitioner") filed three separate petitions for approval of compromise of claim on or about January 6, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on May 18, 2026.

Analysis

The Minor's Compromise is unopposed.^[FN1] The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is **APPROVED**.
2. The proposed forms of order [Order Approving Compromise of Claim (MC-351)] lodged with the moving papers reflect the prior department assignment. Petitioner to submit revised forms of order with Department 34's information and the updated hearing information.

[FN1]: Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER

Civ. Pro.—Before Trial”), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor’s compromise and concluding that a judge “may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise.

6. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO HIRENE SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

See LINE 5 above.

7. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO FRANKLI ESTUARDO SALES SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

See LINE 5 above.

8. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS SET 1 ON PETER DOCTER**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Hoffman (“Plaintiff”) filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants. Collectively, these motions are referred to herein as the “Motions to Compel Further Responses.” The Motions to Compel Further Responses were set for hearing on various dates and ultimately consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Court also directed the parties to confer further and advise as to the items that remain in dispute.

The parties filed a Joint Report on March 12, 2026 that details the particular discovery requests that remain in dispute, as detailed further below.

The Court addressed a number of the requests in its prior Order entered April 1, 2026 (the “April 1st Discovery Order”). As part of that order, the Court ordered the parties to meet and confer further regarding certain Remaining Discovery Requests, as set forth further below, and to file, thereafter, Joint Separate Statement before the next hearing date set for May 18, 2026.

The partes filed the Joint Separate Statement on May 4, 2026.